6

QUESTION 6: Law Proposed by Initiative Petition

Natural Resource Conservation Fund

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would establish a Nature for All Fund that, subject to appropriation by the Legislature, would receive 50% of state taxes collected from the sale and use of sporting goods, recreational vehicles, and golf courses for the first year of its operation. After July 1, 2028, the Nature for All Fund would begin receiving, subject to appropriation by the Legislature, 100% of state taxes collected on the sale and use of sporting goods, recreational vehicles, and golf courses. The sales tax revenue received by the Nature for All Fund would exclude sales tax revenue transferred to the Massachusetts Bay Transportation Authority State and Local Contribution Fund and the School Modernization and Reconstruction Trust Fund. The proposed law would allow the state Executive Office of Energy and Environmental Affairs to spend the money in the Nature for All Fund for natural resource conservation.

The proposed law would allow public and private donations to the Nature for All Fund. The proposed law would prevent the state comptroller from transferring surplus funds in the Nature for All Fund at the end of the fiscal year. It would also allow state agencies, municipalities, public charities involved in natural resource conservation, tribal governments, and other regional public entities to receive money from the Nature for All Fund.

Natural resource conservation would include the conservation or restoration of land to protect drinking water, streams, rivers, lakes, coasts, farms, forests, connectivity between open spaces, and lands and natural resources of indigenous cultural significance. Natural resource conservation would also include the creation, improvement, and management of parks, trails, greenspaces or outdoor recreation access.

The proposed law would establish a 15-member Nature for All Board that consists of five state officials and ten members of the public appointed by the Governor. The proposed law would require the ten members of the public to include representatives of underserved communities and indigenous peoples and at least one person with expertise or experience in natural resource conservation. The proposed law would allow the state Executive Office of Energy and Environmental Affairs to spend money from the Nature for All Fund to hire staff to manage the fund. The proposed law would also require the Nature for All Board to establish rules about how the money in the Nature for All Fund should be spent, including rules regarding alignment with environmental justice principles, access to and restoration of lands and natural resources of indigenous cultural significance, promotion of affordable housing development, and other matters regarding spending and bond issuance.

The proposed law would require the state Executive Office of Energy and Environmental Affairs to submit an annual report to various state committees regarding the funds spent to buy or improve land in cities and towns containing environmental justice populations.

The proposed law would take effect on July 1, 2027.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would create a fund that could be utilized for natural resource conservation that would receive some state taxes collected on the sale and use of sporting goods and recreational vehicles, and the use of golf courses.

A NO VOTE would not create this natural resource conservation fund or change how sales and use taxes are spent.

QUESTION 6: Law Proposed by Initiative Petition

STATEMENT OF FISCAL CONSEQUENCES

As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

The proposed law would have a significant impact on state and local budgets. While a full fiscal analysis is not feasible, it is estimated that, on an annual basis, the proposed law would automatically divert tens of millions of dollars of tax receipts that are currently supporting the state operating budget to the new fund. This proposed law would also have substantial implementation costs.

ARGUMENTS

As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

We all need clean water and nature. Voting **YES** on 6 **protects water, land, and wildlife in Massachusetts — without raising taxes**.

Voting **YES** dedicates as much as $100 million/year to:

- Protect clean drinking water
- Reduce pollution in rivers, lakes, and the ocean
- Conserve forests, family farms, and natural wildlife habitat
- Prevent flooding and storm damage
- Create and improve parks, trails, and greenspaces for public use

Question 6 doesn't raise taxes or create a new tax. It dedicates the sales tax we already pay on sporting goods to protecting water and nature, and requires **strict oversight and annual reporting** so we can see how funds are spent.

Massachusetts is home to beautiful natural areas and diverse species of birds, fish, and other animals. That's why 90+ local conservation organizations and businesses support **YES on 6 to permanently protect our rivers, lakes, forests, farms, and wildlife habitat** for future generations to enjoy.

Mass Audubon
208 S. Great Rd.
Lincoln, MA 01773
617-682-9986
www.natureforma.org

AGAINST:

As of the printing of this book, there was no organized group urging a "No" vote on Question 6. The information below has been compiled by the Office of the Secretary of the Commonwealth, in part from arguments presented in the Legislature's Majority Report. The argument below does not reflect the opinions of the Office of the Secretary of the Commonwealth.

The proposed law creates an unstable fiscal framework by permanently earmarking up to 100% of state sales tax revenues from sporting goods, recreational vehicles, and golf courses. The proposal would rely on existing state revenue streams that are currently allocated to other ongoing programs and priorities. Implementation of the measure would require the reallocation or reduction of funds presently directed toward other state initiatives, raising questions of opportunity costs and the potential displacement of existing infrastructure and environmental funding priorities.

Even if approved by the voters, the funds may not be allocated to the "Nature for All Fund," as the Legislature retains exclusive authority over appropriations decisions. This constitutional framework ensures that funding decisions remain subject to annual budget deliberation and fiscal prioritization.

The proposed law, as written, raises questions regarding fiscal impacts, programmatic displacement, and constraints on administrative flexibility.

Authored by:
"If no argument is received by the secretary from the principal proponents or opponents of a measure within the time allowed by this section, the secretary shall prepare such argument."
– M.G.L. c. 54 § 54.

QUESTION 5: Minority Report (continued)

of whom were not legally present and could not be legally permitted to contribute to the state's economy by entering the state's workforce. The Commonwealth's clean energy and climate plan adopted in the Global Warming Solutions Act has further exacerbated the affordability crisis. During the hearing for these petitions, some provided testimony suggested that a 1% cut to the state income tax was insignificant for Massachusetts residents. Providing tax relief is not simply a matter of economic policy; it is an acknowledgment of the everyday challenges facing residents and a commitment to making Massachusetts a place where people can afford to live, work, and build their futures. If Massachusetts hopes to remain competitive with neighboring states, it must meaningfully address the financial pressures residents face. Residents of the state need relief from the unaffordable policies that the state legislature and Governor have adopted, driving up the costs of housing and energy. These two initiative petitions provide a practical pathway toward relieving some of this burden by reducing the tax load on individuals and ensuring that the Commonwealth does not collect revenue beyond what is reasonably needed to fund essential services.

For these reasons, the minority of the Committee recommends that the General Court adopt Initiative Petition 25-18, House 5007, *Initiative Petition for a Law Relative to Reducing the State Personal Income Tax Rate from 5% to 4%*, and Initiative Petition 25-17, House 5006, *Initiative Petition for a Law Relative to Limiting State Tax Collection Growth and Returning Surpluses to Taxpayers*.

Senator.

Ryan C. Fattman

QUESTION 6: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-15, House 5005, *Initiative Petition for a Law to Protect Water & Nature*, on March 23, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5601.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-15, House 5005, *Initiative Petition for a Law to Protect Water & Nature* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect, as well as testimony and documentary evidence presented at the public hearing. The Committee also considered written submissions from environmental policy experts, state agency representatives, municipal officials, conservation advocates, and members of the public. In addition, the Committee evaluated the potential legal, environmental, administrative, and economic implications of the Initiative Petition, including its interaction with existing statutory authorities governing land conservation, water resource management, and capital planning.

A majority of the Committee has raised concerns regarding the structure, scope, and potential impacts of the Petition as drafted. While proponents of the measure assert that it is designed to be financially neutral and does not constitute a tax increase, the Committee notes that the proposal would rely on existing state revenue streams that are currently allocated to other ongoing programs and priorities. As a result, implementation of the measure would require the reallocation or reduction of funds presently directed toward other state initiatives, including investments administered through agencies such as the Department of Conservation and Recreation. This raises questions of opportunity costs and the potential

QUESTION 6: Majority Report (continued)

displacement of existing infrastructure and environmental funding priorities.

The Committee also noted the inclusion of the phrase "subject to appropriations" within the Petition. Under Article 48 of the Amendments to the Massachusetts Constitution, ballot initiatives may not directly appropriate funds. Accordingly, even if approved by the voters, the measure would not itself compel the expenditure of funds but would instead operate within the Commonwealth's existing budgetary process, in which the Legislature retains exclusive authority over appropriations decisions. This constitutional framework ensures that funding decisions remain subject to annual budget deliberation and fiscal prioritization. As such, passage of this Petition would neither guarantee additional funding nor materially change the status quo.

The Committee recognizes the importance of protecting water resources, preserving natural ecosystems, and supporting long-term environmental sustainability across the Commonwealth. However, after careful consideration, a majority of the Committee concludes that the Petition, as written, raises questions regarding fiscal impacts, programmatic displacement, and constraints on administrative flexibility.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-15, House 5005, *Initiative Petition for a Law to Protect Water & Nature*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Barry R. Finegold	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 7: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure* on March 16, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5597.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-03, House 5000, *Initiative Petition for a Law to Allow Single-Family Homes on Small Lots in Areas with Adequate Infrastructure* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and documentary evidence presented during the public hearing, including input from subject matter experts in housing policy, municipal governance, land use planning,

QUESTION 5: Full Text of Proposed Law

An Act relative to limiting state tax collection growth and returning surpluses to taxpayers.

Be it enacted by the People, and by their authority;

SECTION 1. Section 2 of chapter 62F of the General Laws as appearing in the 2024 Official Edition is hereby amended by replacing the definitions of "Computed Maximum State Tax Revenues" and "State Tax Revenues" with the following —

"Computed Maximum State Tax Revenues" means for any fiscal year beginning after June 30, 2027 an amount determined by multiplying the Net State Tax Revenues, as defined herein, for the immediately preceding fiscal year by the allowable state tax growth factor, as defined herein, for the then current fiscal year.

"State Tax Revenues" means the revenues of the Commonwealth from every tax, surtax, receipt, penalty and other monetary exaction, and interest in connection therewith, including but not limited to, taxes and surtaxes on personal income (including, for purposes of any calculation under this chapter beginning after June 30, 2027, income surtax revenues collected and deposited into the Education and Transportation Fund pursuant to Section 2BBBBBB of chapter 29 of the General Laws), excises and taxes on retail sales and use, meals, motor vehicle fuels, businesses and corporations, public utilities, alcoholic beverages, tobacco, inheritances, estates, deeds, room occupancy and pari-mutuel wagering; but excluding federal reimbursements, proceeds from bond issues, earnings on investments, tuitions, fees, service charges and other departmental revenues, and revenues directly attributable to the additional taxes levied pursuant to section eighty-eight of chapter six hundred and eighty-four of the Acts of nineteen hundred and seventy-five.

SECTION 2. Effective for purposes of any calculation under chapter 62F of the General Laws as appearing in the 2024 Official Edition for any fiscal year beginning after June 30, 2027, Section 2BBBBBB of chapter 29 of the General Laws as appearing in the 2024 Official Edition is hereby amended by striking out subparagraph (d).

SECTION 3. The provisions of this law are severable, and if any clause, sentence, paragraph or section of this chapter, or an application thereof, shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof but shall be confined in its operation to the clause, sentence, paragraph, section, or application adjudged invalid.

QUESTION 6: Full Text of Proposed Law

An Act to protect water and nature.

Be it enacted by the People, and by their authority;

SECTION 1. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following section:

Section 2EEEEEE. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the nature for all fund. There shall be credited to the fund an amount equivalent to 50% of all monies received by the commonwealth from the receipts from taxes on sales and use of sporting goods, recreational vehicles, and golf courses as classified under the 2022 revision of the North American Industry Classification Codes under chapter 64H and 64I. The amount credited to the fund under this subsection shall be net of the dedicated sales tax revenue amount transferred under sections 35T and 35BB of chapter 10. The fund may accept public and private gifts, grants and donations to further the purposes of this section, and any other monies credited to or transferred from any other source pursuant to state law. The fund shall not be subject to section 5C of this chapter.

(b) For the purposes of this section, the phrase "natural resource conservation" shall mean: (i) the conservation or restoration of land to protect drinking water and the quality of streams, rivers, lakes and coasts; (ii) the conservation or restoration of farms, forests, and other land to advance statewide goals and plans in the areas of biodiversity, climate, natural and working lands, resiliency, and environmental justice; (iii) the creation and improvement of parks, greenspaces, trails, and outdoor recreation access, especially in neighborhoods with limited access to such resources; (iv) the conservation of land parcels to provide connectivity between open spaces; (v) the conservation and restoration of lands and natural resources of indigenous cultural significance; and (vi) the provision of ongoing stewardship, outdoor recreation access, and management of such resources.

(c) The executive office of energy and environmental affairs shall make expenditures from the nature for all fund for the purposes of natural resource conservation.

QUESTION 6: Full Text of Proposed Law (continued)

(d) There shall be a 15-member board called the nature for all board comprised of the secretary of energy and environmental affairs, commissioner of fish and game, the commissioner of conservation and recreation, the secretary of housing and livable communities, and the climate chief, and ten members of the public to be appointed by the Governor. The ten public members shall include representatives of underserved communities and indigenous peoples, and one or more persons with expertise or experience in natural resource conservation. The executive office of energy and environmental affairs may make expenditures from the fund to hire staff necessary to manage and make expenditures from the fund. The board shall promulgate regulations for expenditures from the nature for all fund by the executive office of energy and environmental affairs, including, but not limited to: (i) requirements for natural resource conservation that support and align with environmental justice principles, as defined in section 62 of chapter 30; (ii) requirements for access and restoration of lands and natural resources of indigenous cultural significance, (iii) guidelines to promote natural resource conservation in concert with affordable housing development; (iv) guidelines that prevent expenditures from supplanting or otherwise resulting in a decrease in bond cap spending on existing capital programs; and (vi) guidelines for the scope and prioritization of special obligation bonds issued to support natural resource conservation.

(e) State agencies, municipalities or groups of municipalities, regional governments, other regional public entities including, but not limited to, regional planning agencies, economic development districts, and water districts, operating public charities with purposes involving natural resource conservation, and tribal governments shall be lawful recipients of such expenditures.

(f) The executive office of energy and environmental affairs shall submit annually to the board, the environmental justice council established in section 62L of chapter 30, the House and Senate Committees on Ways & Means, and the Joint Committee on Environment & Natural Resources a report of the proportion of funds expended from the nature for all fund that are dedicated to the acquisition or improvement of land in cities or towns containing environmental justice populations as defined in section 62 of chapter 30.

(g) All of the provisions of this section shall be subject to appropriation by the legislature.

SECTION 2. Subsection 2EEEEEE(a) of chapter 29 of the General Laws is hereby amended in the second sentence by striking out the words “50% of”.

SECTION 3. Section 1 shall take effect on July 1, 2027.

SECTION 4. Section 2 shall take effect on July 1, 2028.

QUESTION 7: Full Text of Proposed Law

An Act to allow single-family homes on small lots in areas with adequate infrastructure.

Be it enacted by the People, and by their authority;

SECTION 1. Section 3 of chapter 40A of the Massachusetts General Laws, as so appearing, is hereby amended by adding the following paragraph:

No zoning ordinance or by-law shall prohibit, unreasonably restrict or require a special permit or other discretionary zoning approval for the use of land or structures for a single-family residence in a zoning district that allows residential uses; provided, that the single-family residence is fully contained within a lot measuring equal to or greater than five thousand square feet in area and with equal to or greater than fifty feet of frontage and which has access to public sewer service and public water service; and provided further, that the use of land or structures for such a single-family residence under this paragraph may be subject to reasonable regulations, including, but not limited to, regulations concerning dimensional setbacks and the bulk and height of structures and may be subject to restrictions and prohibitions on short-term rental. The Executive Office of Housing and Livable Communities may issue guidelines or promulgate regulations to administer this paragraph.

SECTION 2. This act shall take effect as provided in Article 48 of the Amendments to the Massachusetts Constitution, as amended.